

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY

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SHAWN MILTON,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, DET. RAFAEL RAMIREZ,
Shield No.: 5234, Individually and in His Official Capacity,
U.C. 384, Individually and in Her Official Capacity, and
P.O.s "JOHN DOE" # 1-10, Individually and in Their
Official Capacities (*the name John Doe being fictitious,
as the true names are presently unknown*),

Defendants.
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Plaintiff, SHAWN MILTON, by his attorneys, MYERS & GALIARDO, LLP,
complaining of the defendants, respectfully allege as follows:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States.

PARTIES

2. Plaintiff is an African-American male and at all relevant times a resident of the County of Queens, in the City and State of New York.

3. Defendant THE CITY OF NEW YORK (hereinafter "CITY"), was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

4. Defendant CITY maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the CITY.

5. At all times hereinafter mentioned, the individually named defendants, DET. RAFAEL RAMIREZ, U.C. 384 and P.O.s "JOHN DOE" # 1-10, were and still are individuals employed as police officers, detectives, agents and servants and/or employees of said department and were acting under the supervision of said department and according to their official duties.

6. At all times hereinafter mentioned, the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant CITY.

8. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment with defendant CITY.

STATEMENT OF FACTS

9. On September 29, 2017, Plaintiff SHAWN MILTON was gainfully employed as a courier with "Supreme Systems", located at 248 West 35th Street, New York, New York.

10. That morning, Plaintiff SHAWN MILTON arrived at work early to receive his paycheck before the start of his 9:00 a.m. work shift work shift. He then left the office to cash his check before returning to start the work day.

11. Plaintiff walked to the "Pay-o-Matic" check cashing service located at 590 Eighth Avenue, near 38th street, New York, New York. He cashed his check at approximately 8:35 a.m.

12. At that time, Plaintiff met with a friend, Darryl, to get a quick breakfast. After speaking with Darryl for a bit, Plaintiff realized that his work shift was going to start soon and he wouldn't have time to eat. Instead, Plaintiff decided to stop by a bodega for cigarettes on the way back to work.

13. The two men walked to 7th Avenue and stopped at a bodega in or about West 38th Street, New York, New York. They purchased cigarettes and then proceeded to walk down 7th Avenue back to Supreme Systems.

14. As Plaintiff and his friend were walking down 7th Avenue toward 35th Street, an unmarked car pulled along the sidewalk near them and 3-4 police officers quickly exited the vehicle and detained the two men on the sidewalk. Plaintiff asked, "why are you stopping us?" One of the officers replied, "you'll find out in a minute".

15. Thereafter, a police officer frisked Plaintiff. The only items Plaintiff possessed were a messenger bag containing work documents, a wallet, and money along with a receipt from the check cashing service.

16. Before the stop, Plaintiff had simply been walking lawfully down the street. As such, the officers did not have a reasonable suspicion to believe that he was breaking the law.

17. After the stop, the defendant officers did not have reasonable suspicion to believe Plaintiff had engaged in any criminal activity prior to the stop.

18. After the stop, the defendant officers did not have reasonable suspicion to believe Plaintiff was in possession of contraband or any other drug.

19. Nevertheless, at approximately 8:55 a.m., defendant officers, without a warrant, unlawfully arrested Plaintiff SHAWN MILTON, based on fabrications.

20. Specifically, defendant U.C. 384 falsely claimed that she had observed Plaintiff participate in an alleged drug sale.

21. Plaintiff SHAWN MILTON did not participate in the alleged drug sale.

22. There was no physical evidence connecting Plaintiff with the alleged drug sale.

23. There was no forensic evidence connecting Plaintiff with the alleged drug sale.

24. There was no "pre-recorded buy money" connecting Plaintiff with the alleged drug sale.

25. Nevertheless, the defendant police officers placed Plaintiff SHAWN MILTON under arrest for a drug sale.

26. In connection with this unlawful arrest, defendant police officers forwarded false police reports to prosecutors in the New York County District Attorney's Office, which contained multiple falsehoods and statements related to the circumstances surrounding Plaintiff's arrest.

27. As a result of the foregoing, Plaintiff SHAWN MILTON was charged with Sale of a Controlled Substance in the Third Degree (Penal Law § 220.39(1)), for allegedly acting in concert with another individual to sell drugs to an undercover police officer.

28. In addition to false arrest, Plaintiff was also subjected to an invasive strip search while in police custody.

29. As a result of his unlawful arrest, Plaintiff spent twelve (12) days in jail before making bail, during which time he was assaulted and abused by other inmates.

30. As a result of the unlawful arrest and incarceration, Plaintiff lost his job.

31. Throughout the criminal proceedings, defendants intentionally and purposefully made false statements under oath to the Grand Jury on October 4, 2017, and to the Judge in a Huntley, Dunaway, Mapp hearing ("Hearing") held on June 6, 2018, in the matter of The People of the State of New York v. Shawn Milton, Indictment Number 3823-2017.

32. As a result of the unlawful arrest, Plaintiff spent time in jail and made numerous court appearances throughout a one-year period in order to defend himself against the baseless false charges that defendants had filed against him.

33. Plaintiff defended himself against the false charges all the way to trial, where a jury acquitted him of the charges.

34. On or about September 24, 2018, all charges against Plaintiff SHAWN MILTON were dismissed.

35. As a result of the foregoing, Plaintiff SHAWN MILTON sustained, *inter alia*, loss of liberty, economic loss, physical injuries, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation and deprivation of his constitutional rights.

AS AND FOR A FIRST CLAIM FOR RELIEF:
Violation of the Civil Rights Pursuant to 42 U.S.C. §1983

36. Plaintiff SHAWN MILTON repeats and realleges each and every allegation set forth in paragraphs "1" through "35", as if more fully set forth at length herein.

37. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of law.

38. All of the aforementioned acts deprived Plaintiff SHAWN MILTON of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth,

Eighth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

39. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and/or corrections officials, with all the actual and/or apparent authority attendant thereto.

40. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.

41. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of his/her respective municipality/authority, which is forbidden by the Constitution of the United States.

42. All of the foregoing acts by defendants deprived Plaintiff SHAWN MILTON of federally protected rights, including, but not limited to, the right: (i) Not to be deprived of liberty without due process of law; (ii) To be free from seizure and arrest not based upon probable cause; (iii) To be free from unwarranted and malicious criminal prosecution; (iv) Not to have cruel and unusual punishment imposed upon them; and (v) To receive equal protection under the law.

43. As a result of the foregoing, Defendants are liable to Plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A SECOND CLAIM FOR RELIEF:
False Arrest Under 42 U.S.C. §1983

44. Plaintiff SHAWN MILTON repeats and realleges each and every allegation in paragraphs "1" through "43" of this Complaint as if the same were more fully set forth at length herein.

45. As a result of the aforesaid conduct by defendants, Plaintiff SHAWN MILTON was subjected to an illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the defendants in criminal proceedings, without probable cause privilege or consent.

46. The aforesaid actions by the defendants constituted a deprivation of the Plaintiff's rights, privileges and/or immunities secured by the Constitution and laws of the United States of America.

47. As a result of the foregoing, Defendants are liable to Plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A THIRD CLAIM FOR RELIEF:
Malicious Prosecution Under 42 U.S.C. § 1983

48. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "47" with the same force and effect as if fully set forth herein.

49. Defendants misrepresented and falsified evidence before the District Attorney and Grand Jury

50. Defendants did not make a complete and full statement of facts to the District Attorney and Grand Jury.

51. Defendants withheld exculpatory evidence from the District Attorney and Grand Jury.

52. Defendants were directly and actively involved in the initiation of criminal proceedings against Plaintiff.

53. Defendants lacked probable cause to initiate criminal proceedings against Plaintiff.

54. Defendants acted with malice in initiating criminal proceedings against Plaintiff.

55. Defendants were directly and actively involved in the continuation of criminal proceedings against Plaintiff.

56. Defendants lacked probable cause to continue criminal proceedings against Plaintiff.

57. Defendants acted with malice in continuing criminal proceedings against Plaintiff.

58. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings.

59. As a result of the foregoing, Defendants are liable to Plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A FOURTH CLAIM FOR RELIEF:
Denial of Constitutional Right to a Fair Trial Under
42 U.S.C. § 1983 Based on Fabricated Evidence

60. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "59" as if the same were more fully set forth at length herein.

61. Defendants created false evidence against Plaintiff SHAWN MILTON.

62. Defendants forwarded false evidence and false information to prosecutors in the New York County District Attorney's Office.

63. The forwarding of false information inculcating Plaintiff to the prosecutors, as well as failing to disclose critical evidence tending to exculpate the Plaintiff, misled the prosecutors and supported a prosecution in the absence of probable cause.

64. In forwarding false evidence and information to prosecutors, and in providing false and misleading testimony, defendants violated Plaintiff's constitutional right to a fair trial under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

65. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, and he was put in fear for his safety, was humiliated and subjected to handcuffing, and other physical restraints, without probable cause.

66. As a result of the foregoing, Defendants are liable to Plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A FIFTH CLAIM FOR RELIEF:
Malicious Abuse of Process Under 42 U.S.C. § 1983

67. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "66" with the same force and effect as if fully set forth herein.

68. The aforementioned individual defendants issued legal process to place Plaintiff SHAWN MILTON under arrest.

69. The aforementioned individual defendants arrested Plaintiff in order to obtain a collateral objective outside the legitimate ends of the legal process.

70. The aforementioned individual defendants acted with intent to do harm to Plaintiff, without excuse or justification.

71. As a result of the foregoing, Plaintiff sustained, *inter alia*, mental anguish, shock, fright, apprehension, economic loss, embarrassment, humiliation, and deprivation of his constitutional rights.

72. As a result of the foregoing, Defendants are liable to Plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A SIXTH CAUSE OF ACTION:
Municipal Liability Under 42 U.S.C. §1983

73. Plaintiff SHAWN MILTON repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "72" as if the same were more fully set forth at length herein.

74. Defendants DET. RAFAEL RAMIREZ, U.C. 384 and P.O.s "JOHN DOE" # 1-10 arrested and incarcerated Plaintiff in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said arrest and incarceration would jeopardize Plaintiff's liberty, well-being, safety and constitutional rights.

75. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.

76. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

77. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted a deliberate indifference to the safety, well-being and constitutional rights of Plaintiffs.

78. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiffs as alleged herein.

79. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiffs as alleged herein.

80. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, Plaintiff SHAWN MILTON was falsely arrested and incarcerated.

81. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of Plaintiff.

82. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of Plaintiffs' constitutional rights.

83. All of the foregoing acts by defendants deprived Plaintiff SHAWN MILTON of federally protected rights, including, but not limited to, the right: (i) Not to be deprived of liberty without due process of law; (ii) To be free from seizure and arrest not based upon probable cause; (iii) To be free from unwarranted and malicious criminal prosecution; (iv) Not to have cruel and unusual punishment imposed upon them; and (v) To receive equal protection under the law.

88. As a result of the foregoing, Defendants are liable to Plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

WHEREFORE, Plaintiff SHAWN MILTON demands judgment against the defendants as follows:

- (1) On all causes of action, compensatory damages in the amount of \$5,000,000.00; and
- (2) On all causes of action, punitive damages in the amount of \$5,000,000.00.
- (3) Costs and disbursements of this action, including attorney's fees, and for such other and further relief as to this Court may deem just and proper.

DATED: New York, New York
February 14, 2019

Respectfully submitted,



Christopher D. Galiardo

MYERS & GALIARDO
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VERIFICATION

CHRISTOPHER GALIARDO, an attorney duly admitted to practice law before the Courts of the State of New York, hereby affirms the truth of the following statements under the penalties of perjury:

Affiant is the attorney of record for the plaintiff in the within action.

Affiant has read the foregoing SUMMONS and VERIFIED COMPLAINT and knows the contents thereof.

The same is true to affiant's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, affiant believes them to be true.

This verification is made by affiant and not by plaintiff because plaintiff resides outside the county wherein affiant maintains his office.

The grounds of affiant's belief as to all matters not stated upon affiant's own knowledge are as follows: investigations and information received by affiant in the course of his duties as attorney for the said plaintiff.

Dated: New York, New York
February 14, 2019


CHRISTOPHER D. GALIARDO